

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2105

By: Osburn

AS INTRODUCED

An act relating to felony reclassification; amending Sections 5, 6, 9, 10, 12 and 13, Chapters 366, O.S.L. 2024 (21 O.S. Supp. 2024, Sections 20E, 20F, 20I, 20J, 20L and 20M), which relate to felony classification of criminal offenses; updating internal statutory citations; modifying classifications for certain crimes; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2024, Section 20E), is amended to read as follows:

Section 20E. A. Upon the effective date of this act, Class A3 shall include the following criminal offenses:

1. Domestic assault and battery with a deadly weapon, as provided for in paragraph 2 of subsection D of Section 644 of Title 21 of the Oklahoma Statutes;

2. Second or subsequent conviction of domestic abuse against a pregnant woman with knowledge of the pregnancy, as provided for in subsection E of Section 644 of Title 21 of the Oklahoma Statutes;

1 3. Aggravated assault and battery upon a police officer,
2 sheriff, deputy sheriff or highway patrolman, corrections personnel,
3 or any state peace officer, as provided for in subsection A of
4 Section 650 of Title 21 of the Oklahoma Statutes;

5 4. Shooting with the intent to kill, as provided for in
6 subsection A of Section 652 of Title 21 of the Oklahoma Statutes;

7 5. Using a vehicle to facilitate the intentional discharge of a
8 firearm, crossbow, or other weapon, as provided for in subsection B
9 of Section 652 of Title 21 of the Oklahoma Statutes;

10 6. Assault and battery with a deadly weapon, as provided for in
11 subsection C of Section 652 of Title 21 of the Oklahoma Statutes;

12 7. Maiming, as provided for in Section ~~752~~ 751 of Title 21 of
13 the Oklahoma Statutes;

14 8. Sexual abuse by a caretaker, as provided for in paragraph 2
15 of subsection B of Section 843.1 of Title 21 of the Oklahoma
16 Statutes;

17 9. Child abuse, as provided for in subsection A of Section
18 843.5 of Title 21 of the Oklahoma Statutes;

19 10. Enabling child abuse, as provided for in subsection B of
20 Section 843.5 of Title 21 of the Oklahoma Statutes;

21 11. Child sexual abuse, as provided for in subsection E of
22 Section 843.5 of Title 21 of the Oklahoma Statutes;

23 12. Enabling child sexual abuse, as provided for in subsection
24 G of Section 843.5 of Title 21 of the Oklahoma Statutes;

1 13. Child sexual exploitation, as provided for in subsection H
2 of Section 843.5 of Title 21 of the Oklahoma Statutes;

3 14. Enabling child sexual exploitation, as provided for in
4 subsection J of Section 843.5 of Title 21 of the Oklahoma Statutes;

5 15. Lewd or indecent proposals or acts to a child, as provided
6 for in subsection A of Section 1123 of Title 21 of the Oklahoma
7 Statutes;

8 16. Terrorism, as provided for in subsection B of Section
9 1268.2 of Title 21 of the Oklahoma Statutes;

10 17. Conspiracy to commit terrorism, as provided for in
11 subsection A of Section 1268.3 of Title 21 of the Oklahoma Statutes;

12 18. Any person above the age of eighteen (18) who, on campuses
13 or public school grounds, advocates revolution, sabotage, force and
14 violation, sedition, treason, or the overthrow of the United States
15 government, as provided for in subsection B of Section 1327 of Title
16 21 of the Oklahoma Statutes;

17 19. Arson in the first degree, as provided for in subsection A
18 of Section 1401 of Title 21 of the Oklahoma Statutes;

19 20. Arson while manufacturing, attempting to manufacture, or
20 endeavoring to manufacture a controlled dangerous substance, as
21 provided for in subsection B of Section 1401 of Title 21 of the
22 Oklahoma Statutes; and
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1 21. Causing personal injury while committing an act of arson,
2 as provided for in Section 1405 of Title 21 of the Oklahoma
3 Statutes.

4 B. Any person convicted of a Class A3 criminal offense set
5 forth in this section shall be punished in accordance with the
6 corresponding penalties provided for in the Oklahoma Statutes.

7 SECTION 2. AMENDATORY Section 6, Chapter 366, O.S.L.
8 2024 (21 O.S. Supp. 2024, Section 20F), is amended to read as
9 follows:

10 Section 20F. A. Upon the effective date of this act, Class B1
11 shall include the following criminal offenses:

12 1. Accessory to murder in the second degree, as provided for in
13 paragraph 5 of Section 175 of Title 21 of the Oklahoma Statutes;

14 2. Rescuing or attempting to rescue a prisoner charged or
15 convicted of a felony, as provided for in paragraph 1 of Section 521
16 of Title 21 of the Oklahoma Statutes;

17 3. Aiding suicide, as provided for in Section 813 of Title 21
18 of the Oklahoma Statutes;

19 4. Aiding suicide by furnishing the person with deadly weapons
20 or poisonous drugs, as provided for in Section 814 of Title 21 of
21 the Oklahoma Statutes;

22 5. Mingling poison, controlled dangerous substances, or sharp
23 objects harmful to human life with any food, drink, medicine, or
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1 water, as provided for in Section 832 of Title 21 of the Oklahoma
2 Statutes;

3 6. Abuse, financial neglect, neglect, or exploitation by a
4 caretaker, as provided for in paragraph 1 of subsection B of Section
5 843.1 of Title 21 of the Oklahoma Statutes;

6 ~~7. Exploitation of an elderly person or disabled adult, as~~
7 ~~provided for in Section 843.4 of Title 21 of the Oklahoma Statutes;~~

8 ~~8.~~ Engaging in child neglect, as provided for in subsection C
9 of Section 843.5 of Title 21 of the Oklahoma Statutes;

10 ~~9.~~ 8. Enabling child neglect, as provided for in subsection D
11 of Section 843.5 of Title 21 of the Oklahoma Statutes;

12 ~~10.~~ 9. Forcible sodomy, as provided for in subsection A of
13 Section 888 of Title 21 of the Oklahoma Statutes;

14 ~~11.~~ 10. Sodomy by a person over eighteen (18) years of age upon
15 a person under sixteen (16) years of age, as provided for in
16 paragraph 1 of subsection B of Section 888 of Title 21 of the
17 Oklahoma Statutes;

18 ~~12.~~ 11. Sodomy upon a person incapable through mental illness
19 or unsoundness of mind to give legal consent, as provided for in
20 paragraph 2 of subsection B of Section 888 of Title 21 of the
21 Oklahoma Statutes;

22 ~~13.~~ 12. Sodomy with any person by means of force, violence, or
23 threats of force or violence, as provided for in paragraph 3 of
24 subsection B of Section 888 of Title 21 of the Oklahoma Statutes;

1 ~~14.~~ 13. Sodomy upon a person under the legal custody,
2 supervision, or authority of a state agency, county, municipality,
3 or political subdivision of the state, as provided for in paragraph
4 4 of subsection B of Section 888 of Title 21 of the Oklahoma
5 Statutes;

6 ~~15.~~ 14. Sodomy upon a person at least sixteen (16) years of age
7 but less than twenty (20) years of age and who is a student of any
8 public or private secondary school, junior high, high school, or
9 public vocational school with a person eighteen (18) years of age or
10 older and who is employed by the same school system, as provided for
11 in paragraph 5 of subsection B of Section 888 of Title 21 of the
12 Oklahoma Statutes;

13 ~~16.~~ 15. Sodomy upon a person who is unconscious, as provided
14 for in paragraph 7 of subsection B of Section 888 of Title 21 of the
15 Oklahoma Statutes;

16 ~~17.~~ 16. Sodomy upon a person who is intoxicated by a narcotic
17 or anesthetic agent administered by or with the privity of the
18 accused, as provided for in paragraph 8 of subsection B of Section
19 888 of Title 21 of the Oklahoma Statutes;

20 ~~18.~~ 17. Procuring or causing the participation of a minor in
21 child pornography or possessing, procuring, manufacturing, selling,
22 or distributing child pornography, as provided for in Section 1021.2
23 of Title 21 of the Oklahoma Statutes;

1 ~~19.~~ 18. Permitting or consenting to the participation of a
2 minor in child pornography by a parent, guardian, or individual
3 having custody, as provided for in Section 1021.3 of Title 21 of the
4 Oklahoma Statutes;

5 ~~20.~~ 19. Buying, procuring, or possessing child pornography, as
6 provided for in Section 1024.2 of Title 21 of the Oklahoma Statutes;

7 ~~21.~~ 20. Child ~~prostitution~~ sex trafficking, as provided for in
8 subsection B of Section 1029 of Title 21 of the Oklahoma Statutes;

9 ~~22.~~ 21. Receiving or offering to agree to receive a child for
10 purposes of prostitution, as provided for in paragraph 2 of
11 subsection A of Section 1087 of Title 21 of the Oklahoma Statutes;

12 ~~23.~~ 22. Transporting or aiding in the transport of a child for
13 prostitution, as provided for in paragraph 3 of subsection A of
14 Section 1087 of Title 21 of the Oklahoma Statutes;

15 ~~24.~~ 23. Permitting the prostitution of a child in any house,
16 building, room, other premises, or any conveyances under the control
17 of a person, as provided for in paragraph 2 of subsection B of
18 Section 1087 of Title 21 of the Oklahoma Statutes;

19 ~~25.~~ 24. Causing, inducing, persuading, or encouraging a child
20 by promise, threats, violence, or any device or scheme to engage in
21 prostitution, as provided for in paragraph 1 of subsection A of
22 Section 1088 of Title 21 of the Oklahoma Statutes;

1 ~~26.~~ 25. Keeping, holding, detaining, restraining, or compelling
2 a child to engage in prostitution, as provided for in paragraph 2 of
3 subsection A of Section 1088 of Title 21 of the Oklahoma Statutes;

4 ~~27.~~ 26. Keeping, holding, detaining, restraining, or compelling
5 a child to engage in prostitution for purposes of compelling the
6 child to pay, liquidate, or cancel any debts, dues, or obligations
7 incurred by the child, as provided for in paragraph 3 of subsection
8 A of Section 1088 of Title 21 of the Oklahoma Statutes;

9 ~~28.~~ 27. Permitting the keeping, holding, detaining, or
10 restraining of a child for prostitution in any house, building,
11 room, other premises, or any conveyances under the control of a
12 person, as provided for in paragraph 2 of subsection B of Section
13 1088 of Title 21 of the Oklahoma Statutes;

14 ~~29.~~ 28. Advocating the revolution, sabotage, force and
15 violation, sedition, treason, or overthrow of the government of the
16 United States, as provided for in Section 1266 of Title 21 of the
17 Oklahoma Statutes;

18 ~~30.~~ 29. Commit, attempt to commit, or aid in the commission of
19 any act intended to overthrow, destroy, or alter the government of
20 the United States, as provided for in Section 1266.4 of Title 21 of
21 the Oklahoma Statutes;

22 ~~31.~~ 30. Biochemical terrorism, as provided for in subsection D
23 of Section 1268.2 of Title 21 of the Oklahoma Statutes;

1 ~~32.~~ 31. Biochemical assault when the person knows the substance
2 is toxic, noxious, or lethal to humans, as provided for in
3 subsection C of Section 1268.5 of Title 21 of the Oklahoma Statutes;

4 ~~33.~~ 32. Second or subsequent conviction of using a firearm
5 while committing a felony, as provided for in subsection A of
6 Section 1287 of Title 21 of the Oklahoma Statutes;

7 ~~34.~~ 33. Discharging a firearm or other deadly weapon at or into
8 a dwelling or building used for public or business purposes, as
9 provided for in Section 1289.17A of Title 21 of the Oklahoma
10 Statutes;

11 ~~35.~~ 34. Directing, advising, encouraging, or soliciting other
12 persons to commit acts of force or violence while participating in a
13 riot, as provided for in paragraph 4 of Section 1312 of Title 21 of
14 the Oklahoma Statutes;

15 ~~36.~~ 35. Burglary in the first degree, as provided for in
16 Section 1431 of Title 21 of the Oklahoma Statutes;

17 ~~37.~~ 36. Seizing or exercising control of any bus by force or
18 violence or by threats of force or violence, as provided for in
19 subsection A of Section 1903 of Title 21 of the Oklahoma Statutes;

20 ~~38.~~ 37. Using a dangerous or deadly weapon while seizing or
21 exercising control of a bus or when intimidating, threatening,
22 assaulting, or battering a bus driver, as provided for in subsection
23 C of Section 1903 of Title 21 of the Oklahoma Statutes;

1 ~~39.~~ 38. Receiving, acquiring, and concealing proceeds derived
2 from unlawful activities in an amount of more than Fifty Thousand
3 Dollars (\$50,000.00), as provided for in paragraph 4 of subsection G
4 of Section 2001 of Title 21 of the Oklahoma Statutes;

5 ~~40.~~ 39. Participating in racketeering activities, as provided
6 for in subsection A of Section 1403 of Title 22 of the Oklahoma
7 Statutes;

8 ~~41.~~ 40. Acquiring or maintaining any interest in or control of
9 any enterprise or real property through racketeering activities, as
10 provided for in subsection B of Section 1403 of Title 22 of the
11 Oklahoma Statutes;

12 ~~42.~~ 41. Using or investing any part of proceeds derived from
13 racketeering activities, as provided for in subsection C of Section
14 1403 of Title 22 of the Oklahoma Statutes;

15 ~~43.~~ 42. Conspiring with others to commit unlawful racketeering
16 activities, as provided for in subsection D of Section 1403 of Title
17 22 of the Oklahoma Statutes;

18 ~~44.~~ 43. Causing an accident resulting in great bodily injury
19 while driving under the influence of alcohol or other intoxicating
20 substance, as provided for in paragraph 1 of subsection B of Section
21 11-904 of Title 47 of the Oklahoma Statutes; and

22 ~~45.~~ 44. Trafficking in fentanyl or carfentanyl, or any fentanyl
23 analogs or derivatives, as provided for in subparagraph a of
24

1 paragraph 12 of subsection C of Section 2-415 of Title 63 of the
2 Oklahoma Statutes.

3 B. Any person convicted of a Class B1 criminal offense set
4 forth in this section shall be punished in accordance with the
5 corresponding penalties provided for in the Oklahoma Statutes.

6 SECTION 3. AMENDATORY Section 9, Chapter 366, O.S.L.
7 2024 (21 O.S. Supp. 2024, Section 20I), is amended to read as
8 follows:

9 Section 20I. A. Upon the effective date of this act, Class B4
10 shall include the following criminal offenses:

11 1. Concealing the birth or death of a child, as provided for in
12 Section 53 of Title 21 of the Oklahoma Statutes;

13 2. Assault, battery, or assault and battery with a sharp or
14 dangerous weapon, as provided for in Section 645 of Title 21 of the
15 Oklahoma Statutes;

16 3. Robbery in the second degree, as provided for in Section 799
17 of Title 21 of the Oklahoma Statutes;

18 4. Neglecting a vulnerable adult, as provided for in subsection
19 ~~B~~ A of Section 843.3 of Title 21 of the Oklahoma Statutes;

20 5. Malicious harassment of another person based on that
21 person's race, color, religion, ancestry, national origin, or
22 disability, as provided for in Section 850 of Title 21 of the
23 Oklahoma Statutes;

1 6. Abandonment of a child under ten (10) years of age, as
2 provided for in Section 851 of Title 21 of the Oklahoma Statutes;

3 7. Abandonment of a wife or child under fifteen (15) years of
4 age, as provided for in Section 853 of Title 21 of the Oklahoma
5 Statutes;

6 8. Second or subsequent conviction for causing, aiding,
7 abetting, encouraging, soliciting, or recruiting a minor to
8 participate, join, or associate with a criminal street gang, as
9 provided for in subsection E of Section 856 of Title 21 of the
10 Oklahoma Statutes;

11 9. Incest, as provided for in Section 885 of Title 21 of the
12 Oklahoma Statutes;

13 10. Crime against nature, as provided for in Section 886 of
14 Title 21 of the Oklahoma Statutes;

15 11. Taking or enticing away any child under sixteen (16) years
16 of age with the intent to detain or conceal such child, as provided
17 for in Section 891 of Title 21 of the Oklahoma Statutes;

18 12. Indecent exposure, as provided for in paragraph 1 of
19 subsection A of Section 1021 of Title 21 of the Oklahoma Statutes;

20 13. Procuring, counseling, or assisting another to commit an
21 act of indecent exposure, as provided for in paragraph 2 of
22 subsection A of Section 1021 of Title 21 of the Oklahoma Statutes;

23 14. Preparing, publishing, selling, distributing, downloading
24 on a computer, or exhibiting obscene material or child pornography,

1 as provided for in paragraph 3 of subsection A of Section 1021 of
2 Title 21 of the Oklahoma Statutes;

3 15. Preparing, selling, giving, loaning, distributing, or
4 exhibiting any type of obscene material or child pornography, as
5 provided for in paragraph 4 of subsection A of Section 1021 of Title
6 21 of the Oklahoma Statutes;

7 16. Operating, owning, or maintaining a house of prostitution,
8 soliciting, enticing, or procuring another for prostitution, or
9 transporting or assisting in the transport of another for
10 prostitution purposes, as provided for in Section 1028 of Title 21
11 of the Oklahoma Statutes;

12 17. Engaging in prostitution or soliciting, inducing, enticing,
13 or procuring another to commit an act of prostitution, as provided
14 for in subsection A of Section 1029 of Title 21 of the Oklahoma
15 Statutes;

16 18. Purchasing, selling, or distributing obscene material or
17 child pornography, as provided for in Section 1040.13 of Title 21 of
18 the Oklahoma Statutes;

19 19. Encouraging, offering, or soliciting sexual conduct with a
20 minor by use of technology, as provided for in Section 1040.13a of
21 Title 21 of the Oklahoma Statutes;

22 20. Promoting a pyramid promotional scheme, as provided for in
23 Section 1073 of Title 21 of the Oklahoma Statutes;

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1 21. Second or subsequent offense of permitting prostitution in
2 any house, building, room, or premises under the control of such
3 person, as provided for in Section 1086 of Title 21 of the Oklahoma
4 Statutes;

5 22. Offering or offering to secure a child under eighteen (18)
6 years of age for the purpose of prostitution ~~or transporting or~~
7 ~~assisting in the transport of a child under eighteen (18) years of~~
8 ~~age to a house, place, building, vehicle, or other conveyance for~~
9 ~~the purpose of prostitution~~, as provided for in paragraph 1 of
10 subsection A of Section 1087 of Title 21 of the Oklahoma Statutes;

11 23. Knowingly permitting the prostitution of a child under
12 eighteen (18) years of age by an owner, proprietor, manager,
13 conductor, or other person in any house, place, building, room, or
14 other premises under the control of such person, as provided for in
15 paragraph 2 of subsection B of Section 1087 of Title 21 of the
16 Oklahoma Statutes;

17 24. Taking a woman against her will to compel her by force or
18 duress to marry another, as provided for in Section 1118 of Title 21
19 of the Oklahoma Statutes;

20 25. Abduction of a child under fifteen (15) years of age for
21 the purpose of marriage, concubinage, or any crime involving moral
22 turpitude, as provided for in Section 1119 of Title 21 of the
23 Oklahoma Statutes;

1 26. Sexual battery, as provided for in subsection B of Section
2 1123 of Title 21 of the Oklahoma Statutes;

3 27. Indecent acts with a human corpse, as provided for in
4 subsection C of Section 1123 of Title 21 of the Oklahoma Statutes;

5 28. Desecration of a human corpse, as provided for in Section
6 1161.1 of Title 21 of the Oklahoma Statutes;

7 29. Stalking within ten (10) years of a prior conviction for
8 stalking, as provided for in subsection D of Section 1173 of Title
9 21 of the Oklahoma Statutes;

10 30. Interfering with, molesting, or assaulting firefighters in
11 the performance of their duties, as provided for in Section 1217 of
12 Title 21 of the Oklahoma Statutes;

13 31. Concealment of hazardous waste, as provided for in Section
14 1230.7 of Title 21 of the Oklahoma Statutes;

15 32. Criminal syndicalism, as provided for in Section 1261 of
16 Title 21 of the Oklahoma Statutes;

17 33. Sabotage, as provided for in Section 1262 of Title 21 of
18 the Oklahoma Statutes;

19 34. Advocating or teaching criminal syndicalism or sabotage, as
20 provided for in Section 1263 of Title 21 of the Oklahoma Statutes;

21 35. Destroying, interfering, hindering, or tampering with real
22 or personal property with intent to hinder, delay, or interfere with
23 preparations for defense or for war, as provided for in Section
24 1265.2 of Title 21 of the Oklahoma Statutes;

1 36. Make or cause defects with any article or thing with
2 reasonable grounds to believe such article or thing will be used for
3 defense or for war, as provided for in Section 1265.3 of Title 21 of
4 the Oklahoma Statutes;

5 37. Conspiracy to commit crimes provided in the Sabotage
6 Prevention Act, as provided for in Section 1265.5 of Title 21 of the
7 Oklahoma Statutes;

8 38. Terrorism hoax, as provided for in Section 1268.4 of Title
9 21 of the Oklahoma Statutes;

10 39. Engaging in terrorist activity by manufacturing, sending,
11 delivering, or possessing any toxic, noxious, or lethal substances,
12 chemical, biological, or nuclear materials, as provided for in
13 Section 1268.6 of Title 21 of the Oklahoma Statutes;

14 40. Conducting or attempting to conduct financial transactions
15 involving property related to terrorism, as provided for in Section
16 1268.7 of Title 21 of the Oklahoma Statutes;

17 41. Using a money services business or an electronic funds
18 transfer in violation of the Oklahoma Antiterrorism Act, as provided
19 for in Section 1268.8 of Title 21 of the Oklahoma Statutes;

20 42. Possession of a firearm by a convicted felon, as provided
21 for in subsection A of Section 1283 of Title 21 of the Oklahoma
22 Statutes;

23 43. Possession of a firearm by a person serving a term of
24 probation for a felony or who is subject to supervision, probation,

1 parole, or inmate status, as provided for in subsection C of Section
2 1283 of Title 21 of the Oklahoma Statutes;

3 44. Possession of a firearm by a person previously adjudicated
4 as a delinquent child or youthful offender, as provided for in
5 subsection D of Section 1283 of Title 21 of the Oklahoma Statutes;

6 45. Possession of a firearm by a person who is an alien
7 illegally or unlawfully in the United States, as provided for in
8 subsection E of Section 1283 of Title 21 of the Oklahoma Statutes;

9 46. Allowing a convicted felon, adjudicated delinquent, or
10 youthful offender to possess a pistol authorized for use under the
11 Oklahoma Self-Defense Act by a person who has a handgun license, as
12 provided for in subsection F of Section 1283 of Title 21 of the
13 Oklahoma Statutes;

14 47. Use of a firearm or other offensive weapon while committing
15 a felony, as provided for in Section 1287 of Title 21 of the
16 Oklahoma Statutes;

17 48. Pointing a firearm, as provided for in Section 1289.16 of
18 Title 21 of the Oklahoma Statutes;

19 49. Manufacturing, importing, or selling restricted bullets, as
20 provided for in Section 1289.20 of Title 21 of the Oklahoma
21 Statutes;

22 50. Possessing, carrying, or using or attempting to use against
23 another person any restricted bullets, as provided for in Section
24 1289.21 of Title 21 of the Oklahoma Statutes;

1 51. Committing a felony while wearing body armor, as provided
2 for in Section 1289.26 of Title 21 of the Oklahoma Statutes;

3 52. Carrying a stolen handgun, as provided for in subsection B
4 of Section 1290.21 of Title 21 of the Oklahoma Statutes;

5 53. Incitement to riot, as provided for in Section 1320.2 of
6 Title 21 of the Oklahoma Statutes;

7 54. Malicious destruction or damage to real or personal
8 property or malicious injury to another during a state of emergency,
9 as provided for in Section 1321.7 of Title 21 of the Oklahoma
10 Statutes;

11 55. Participating in a riot during a state of emergency, as
12 provided for in subsection A of Section 1321.8 of Title 21 of the
13 Oklahoma Statutes;

14 56. Causing an innocent or irresponsible person to engage in a
15 riot, as provided for in subsection E of Section 1321.8 of Title 21
16 of the Oklahoma Statutes;

17 57. Possession of explosives by a convicted felon, as provided
18 for in Section 1368 of Title 21 of the Oklahoma Statutes;

19 58. Attempting, conspiring, or endeavoring to perform an act of
20 violence, as provided for in subsection A of Section 1378 of Title
21 21 of the Oklahoma Statutes;

22 59. Devising a plan, scheme, or program of action to cause
23 serious bodily harm or death of another person, as provided for in
24 subsection C of Section 1378 of Title 21 of the Oklahoma Statutes;

1 60. Endangering any human life including emergency service
2 personnel while committing an act of arson, as provided for in
3 Section 1405 of Title 21 of the Oklahoma Statutes;

4 61. Intimidating, threatening, assaulting, or battering any
5 driver, attendant, guard, or passenger of a bus with intent to seize
6 the bus, as provided for in subsection B of Section 1903 of Title 21
7 of the Oklahoma Statutes;

8 62. Discharging any firearm into or within any bus, terminal,
9 or other transportation facility, as provided for in subsection D of
10 Section 1903 of Title 21 of the Oklahoma Statutes;

11 63. Leaving the scene of a vehicle accident that resulted in
12 the death of a person, as provided for in Section 10-102.1 of Title
13 47 of the Oklahoma Statutes;

14 64. Second felony conviction of driving under the influence of
15 alcohol or other intoxicating substance, as provided for in
16 paragraph 3 of subsection C of Section 11-902 of Title 47 of the
17 Oklahoma Statutes;

18 65. Causing an accident resulting in the death of another
19 person while operating a vehicle without a valid driver license, as
20 provided for in subsection C of Section 11-905 of Title 47 of the
21 Oklahoma Statutes;

22 66. Throwing or dropping any substance at a moving vehicle, as
23 provided for in subsection A of Section 11-1111 of Title 47 of the
24 Oklahoma Statutes;

1 67. Throwing or dropping any object from a bridge or overpass
2 with intent to damage property or injure a person, as provided for
3 in subsection B of Section 11-1111 of Title 47 of the Oklahoma
4 Statutes;

5 68. Manufacturing, selling, transferring, or furnishing a
6 precursor substance to another with knowledge the recipient will use
7 such substance to unlawfully manufacture a controlled substance, as
8 provided for in subsection C of Section 2-328 of Title 63 of the
9 Oklahoma Statutes;

10 69. Second or subsequent conviction for manufacturing, selling,
11 transferring, furnishing, or receiving a precursor substance, as
12 provided for in subsection D of Section 2-328 of Title 63 of the
13 Oklahoma Statutes;

14 70. Purchasing, obtaining, possessing, manufacturing, selling,
15 or transferring a precursor substance without a permit or making a
16 false statement in an application or report, as provided for in
17 subsection E of Section 2-328 of Title 63 of the Oklahoma Statutes;

18 71. Selling, transferring, distributing, or dispensing any
19 product containing ephedrine, pseudoephedrine, or
20 phenylpropanolamine to another with knowledge the purchaser will use
21 such product as a precursor to manufacture methamphetamine or
22 another controlled illegal substance, as provided for in Section 2-
23 333 of Title 63 of the Oklahoma Statutes;

1 72. Cultivating, producing, or knowingly permitting the
2 cultivation or production of any species of plants from which
3 controlled dangerous substances may be derived, as provided for in
4 subsection B of Section 2-509 of Title 63 of the Oklahoma Statutes;

5 73. Manufacturing or attempting to manufacture any controlled
6 dangerous substance by cooking, burning, or extracting and
7 converting ~~marijuana~~ marihuana or ~~marijuana~~ marihuana oil into
8 hashish, hashish oil, or hashish powder, as provided for in
9 subsection H of Section 2-509 of Title 63 of the Oklahoma Statutes;

10 74. Purchasing or possessing any quantity of pseudoephedrine by
11 a person who is subject to the Oklahoma Methamphetamine Offender
12 Registry Act, as provided for in subsection B of Section 2-701 of
13 Title 63 of the Oklahoma Statutes; and

14 75. Using an explosive or blasting agent with the intent to
15 kill, injure, or intimidate a person or unlawfully damage real or
16 personal property, as provided for in subsection B of Section 124.8
17 of Title 63 of the Oklahoma Statutes.

18 B. Any person convicted of a Class B4 criminal offense set
19 forth in this section shall be punished in accordance with the
20 corresponding penalties provided for in the Oklahoma Statutes.

21 SECTION 4. AMENDATORY Section 10, Chapter 366, O.S.L.
22 2024 (21 O.S. Supp. 2024, Section 20J), is amended to read as
23 follows:
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1 Section 20J. A. Upon the effective date of this act, Class B5
2 shall include the following criminal offenses:

3 1. Second or subsequent conviction for assault and battery
4 against a current or former intimate partner or a family or
5 household member, as provided for in subsection C of Section 644 of
6 Title 21 of the Oklahoma Statutes;

7 2. Second or subsequent conviction for domestic abuse committed
8 in the presence of a child, as provided for in subsection G of
9 Section 644 of Title 21 of the Oklahoma Statutes;

10 3. Assault and battery by strangulation or attempted
11 strangulation against an intimate partner or a family or household
12 member, as provided for in subsection J of Section 644 of Title 21
13 of the Oklahoma Statutes;

14 4. Aggravated assault and battery, as provided for in Section
15 646 of Title 21 of the Oklahoma Statutes;

16 5. Battery or assault and battery upon a police officer,
17 sheriff, deputy sheriff, highway patrolman, corrections personnel,
18 or other state peace officer, as provided for in subsection B of
19 Section 649 of Title 21 of the Oklahoma Statutes;

20 6. Striking or mistreating a police dog or police horse during
21 the commission of a misdemeanor or felony, as provided for in
22 subsection D of Section 649.1 of Title 21 of the Oklahoma Statutes;

23 7. Disfiguring, disabling, or killing a police dog or police
24 horse during the commission of a misdemeanor or felony, as provided

1 for in subsection C of Section 649.2 of Title 21 of the Oklahoma
2 Statutes;

3 8. Battery or assault and battery resulting in bodily injury to
4 any employee of the Office of Juvenile Affairs or residential
5 facility, as provided for in subsection E of Section 650.2 of Title
6 21 of the Oklahoma Statutes;

7 9. Assault with intent to kill, as provided for in Section 653
8 of Title 21 of the Oklahoma Statutes;

9 10. Assault with intent to commit any felony, as provided for
10 in Section 681 of Title 21 of the Oklahoma Statutes;

11 11. Manslaughter in the second degree, as provided for in
12 Section 716 of Title 21 of the Oklahoma Statutes;

13 12. Owning a mischievous animal that kills a human being, as
14 provided for in Section 717 of Title 21 of the Oklahoma Statutes;

15 13. Causing, aiding, abetting, or encouraging a minor to commit
16 or participate in committing a felony offense, as provided for in
17 subsection C of Section 856 of Title 21 of the Oklahoma Statutes;

18 14. Causing, aiding, abetting, encouraging, soliciting, or
19 recruiting a minor to participate, join, or associate with any
20 criminal street gang, as provided for in subsection D of Section 856
21 of Title 21 of the Oklahoma Statutes;

22 15. Committing a gang-related offense as a condition of
23 membership in a criminal street gang, as provided for in Section
24 856.3 of Title 21 of the Oklahoma Statutes;

1 16. Stalking, as provided for in subsection B of Section 1173
2 of Title 21 of the Oklahoma Statutes;

3 17. Second or subsequent conviction of stalking or committing
4 the act of stalking within ten (10) years of the completion of
5 sentence for a prior conviction of stalking, as provided for in
6 subsection C of Section 1173 of Title 21 of the Oklahoma Statutes;

7 18. Intentionally or recklessly spreading an infectious
8 disease, as provided for in Section 1192.1 of Title 21 of the
9 Oklahoma Statutes;

10 19. Entering the premises of another while masked or disguised
11 with the intent to inflict bodily injury or injury to property, as
12 provided for in Section 1302 of Title 21 of the Oklahoma Statutes;

13 20. Assault with a dangerous weapon while masked or in
14 disguise, as provided for in Section 1303 of Title 21 of the
15 Oklahoma Statutes;

16 21. Unlawful assembly for the purpose of engaging in a riot, as
17 provided for in Section 1320.3 of Title 21 of the Oklahoma Statutes;

18 22. Acts of cruelty to animals, as provided for in Section 1685
19 of Title 21 of the Oklahoma Statutes;

20 23. Instigating or encouraging any cockfight, as provided for
21 in Section 1692.2 of Title 21 of the Oklahoma Statutes;

22 24. Keeping a pit or other place or knowingly providing
23 equipment or facilities for cockfighting, as provided for in Section
24 1692.3 of Title 21 of the Oklahoma Statutes;

1 25. Servicing or facilitating a cockfight, as provided for in
2 Section 1692.4 of Title 21 of the Oklahoma Statutes;

3 26. Owning, possessing, keeping, or training any bird for
4 cockfighting, as provided for in Section 1692.5 of Title 21 of the
5 Oklahoma Statutes;

6 27. Instigating or encouraging any fight between dogs, as
7 provided for in Section 1694 of Title 21 of the Oklahoma Statutes;

8 28. Keeping a house, pit, or other place, or providing any
9 equipment or facilities to be used for any fight between dogs, as
10 provided for in Section 1695 of Title 21 of the Oklahoma Statutes;

11 29. Acting or performing any service in the furtherance of or
12 facilitating any dogfight, as provided for in Section 1696 of Title
13 21 of the Oklahoma Statutes;

14 30. Owning, possessing, keeping, or training any dog with
15 intent to have such dog fight another dog, as provided for in
16 Section 1697 of Title 21 of the Oklahoma Statutes;

17 31. Failing to stop for an accident resulting in a nonfatal
18 injury to another person, as provided for in Section 10-102 of Title
19 47 of the Oklahoma Statutes;

20 ~~28.~~ 32. Personal injury accident while driving or operating a
21 motor vehicle under the influence of alcohol or other intoxicating
22 substance while having a previous conviction for driving or
23 operating a motor vehicle while under the influence of alcohol or
24

1 other intoxicating substance, as provided for in paragraph 2 of
2 subsection A of Section 11-904 of Title 47 of the Oklahoma Statutes;

3 ~~29.~~ 33. Failure to register as a sex offender, as provided for
4 in Section 583 of Title 57 of the Oklahoma Statutes;

5 ~~30.~~ 34. Furnishing false or misleading information in the
6 registration required by the Sex Offenders Registration Act, as
7 provided for in Section 586 of Title 57 of the Oklahoma Statutes;

8 ~~31.~~ 35. Failure to comply with the Sex Offenders Registration
9 Act, as provided for in subsection A of Section 587 of Title 57 of
10 the Oklahoma Statutes;

11 ~~32.~~ 36. Failure to comply with established guidelines of
12 global-positioning-system (GPS) monitoring pursuant to the
13 provisions of the Sex Offenders Registration Act, as provided for in
14 subsection B of Section 587 of Title 57 of the Oklahoma Statutes;

15 ~~33.~~ 37. Temporarily or permanently residing within a two-
16 thousand-foot radius of a public or private school site or other
17 listed places by a person required to register pursuant to the Sex
18 Offenders Registration Act, as provided for in subsection A of
19 Section 590 of Title 57 of the Oklahoma Statutes;

20 ~~34.~~ 38. Residing with a minor child after being convicted of an
21 offense that involved a minor child by a person required to register
22 pursuant to the Sex Offenders Registration Act, as provided for in
23 subsection B of Section 590 of Title 57 of the Oklahoma Statutes;

1 ~~35.~~ 39. Two or more sex offenders residing together in a
2 dwelling during the term of registration as a sex offender, as
3 provided for in subsection A of Section 590.1 of Title 57 of the
4 Oklahoma Statutes; and

5 ~~36.~~ 40. Establishing, leasing, operating, or owning any
6 structure where persons required to register pursuant to the Sex
7 Offenders Registration Act are allowed to reside, as provided for in
8 subsection E of Section 590.1 of Title 57 of the Oklahoma Statutes.

9 B. Any person convicted of a Class B5 criminal offense set
10 forth in this section shall be punished in accordance with the
11 corresponding penalties provided for in the Oklahoma Statutes.

12 SECTION 5. AMENDATORY Section 12, Chapter 366, O.S.L.
13 2024 (21 O.S. Supp. 2024, Section 20L), is amended to read as
14 follows:

15 Section 20L. A. Upon the effective date of this act, Class C1
16 shall include the following criminal offenses:

17 1. Assisting a prisoner, who is confined in prison for a
18 felony, to escape from prison, as provided for in paragraph 1 of
19 Section 437 of Title 21 of the Oklahoma Statutes;

20 2. Carrying in or sending into a prison anything useful to aid
21 a prisoner, who is confined in prison for a felony, in escaping from
22 prison, as provided for in paragraph 1 of Section 438 of Title 21 of
23 the Oklahoma Statutes;

1 3. Harboring, assisting, or concealing any person guilty of a
2 felony, outlaw, or fugitive from justice, as provided for in
3 subsection A of Section 440 of Title 21 of the Oklahoma Statutes;

4 4. Preventing or attempting to prevent any person from giving
5 testimony or producing records or documents, as provided for in
6 subsection A of Section 455 of Title 21 of the Oklahoma Statutes;

7 5. Threatening physical harm through force or fear or causing
8 physical harm to any person who provided testimony in any civil or
9 criminal trial or proceeding, as provided for in subsection B of
10 Section 455 of Title 21 of the Oklahoma Statutes;

11 6. ~~Causing~~ Endangering any other person while attempting to
12 elude a peace officer or causing an accident resulting in great
13 bodily injury while eluding or attempting to elude ~~an~~ a peace
14 officer, as provided for in subsection B or C of Section 540A of
15 Title 21 of the Oklahoma Statutes;

16 7. Fighting any duel, as provided for in Section 662 of Title
17 21 of the Oklahoma Statutes;

18 8. Financial exploitation of an elderly or disabled adult with
19 funds, assets, or property valued at One Hundred Thousand Dollars
20 (\$100,000.00) or more, as provided for in paragraph 1 of subsection
21 B of Section 843.4 of Title 21 of the Oklahoma Statutes;

22 9. Arson in the third degree by setting fire, burning, or using
23 explosive devices to burn any property, as provided for in
24 subsection A of Section 1403 of Title 21 of the Oklahoma Statutes;

1 10. Arson in the fourth degree by placing or distributing any
2 flammable, explosive, or combustible material or substance in any
3 building or property with the intent to set fire to or burn the
4 same, as provided for in subsection B of Section 1404 of Title 21 of
5 the Oklahoma Statutes;

6 11. Burglary in the second degree by breaking and entering into
7 the dwelling house of another in which no human is present, as
8 provided for in subsection A of Section 1435 of Title 21 of the
9 Oklahoma Statutes;

10 12. Stealing in the night time from the person of another, as
11 provided for in Section 1708 of Title 21 of the Oklahoma Statutes;

12 ~~12. Soliciting another to commit certain computer crimes, as~~
13 ~~provided for in paragraph 10 of subsection A of Section 1953 of~~
14 ~~Title 21 of the Oklahoma Statutes;~~

15 13. Receiving, acquiring, or concealing proceeds or engaging in
16 transactions involving proceeds of Ten Thousand Dollars (\$10,000.00)
17 or more that were derived from unlawful activities, as provided for
18 in paragraph 3 of subsection G of Section 2001 of Title 21 of the
19 Oklahoma Statutes;

20 14. Making a false affidavit, as provided for in Section 6-302
21 of Title 47 of the Oklahoma Statutes;

22 15. Using or soliciting the use of services of a minor to
23 distribute, dispense, transport, or cultivate a controlled dangerous
24

1 substance, as provided for in subsection E of Section 2-401 of Title
2 63 of the Oklahoma Statutes;

3 16. Transporting with intent to distribute or dispense,
4 distributing, or possessing with intent to distribute a controlled
5 dangerous substance within two thousand (2,000) feet of a public or
6 private school, college or university, park, or child care facility,
7 as provided for in subsection F of Section 2-401 of Title 63 of the
8 Oklahoma Statutes;

9 17. Acquiring or obtaining possession of a controlled dangerous
10 substance by a registrant through misrepresentation, fraud, forgery,
11 deception, or subterfuge, as provided for in paragraph 3 of
12 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

13 18. Employing, hiring, or using a minor to transport, carry,
14 sell, give away, prepare for sale, or peddle any controlled
15 dangerous substance, as provided for in subsection A of Section 2-
16 419.1 of Title 63 of the Oklahoma Statutes;

17 19. Employing, hiring, or using a minor to transport, carry,
18 sell, give away, prepare for sale, or peddle any controlled
19 dangerous substance subsequent to a previous conviction of the same,
20 as provided for in subsection C of Section 2-419.1 of Title 63 of
21 the Oklahoma Statutes;

22 20. Evading federal reporting requirements or other federal
23 money laundering laws, as provided for in Section 2-503.1f of Title
24 63 of the Oklahoma Statutes;

1 21. Owning, operating, or conducting a chop shop, as provided
2 for in paragraph 1 of subsection A of Section 4253 of Title 63 of
3 the Oklahoma Statutes;

4 22. Transporting any vessel, motor, or vessel or motor parts to
5 or from a chop shop, as provided for in paragraph 2 of subsection A
6 of Section 4253 of Title 63 of the Oklahoma Statutes; and

7 23. Selling, transferring, purchasing, or receiving any vessel,
8 motor, or vessel or motor parts to or from a chop shop, as provided
9 for in paragraph 3 of subsection A of Section 4253 of Title 63 of
10 the Oklahoma Statutes; ~~and~~

11 ~~24. Burglary in the second degree by breaking and entering into~~
12 ~~the dwelling house of another in which no human is present, as~~
13 ~~provided for in subsection A of Section 1435 of Title 21 of the~~
14 ~~Oklahoma Statutes.~~

15 B. Any person convicted of a Class C1 criminal offense set
16 forth in this section shall be punished by imprisonment in the
17 custody of the Department of Corrections for a term of not more than
18 eight (8) years and shall serve at least twenty-five percent (25%)
19 of the sentence imposed before release from custody including
20 release to electronic monitoring pursuant to Section 510.9 of Title
21 57 of the Oklahoma Statutes.

22 C. 1. Every person who, having been previously convicted of
23 one or two Class C or Class D criminal offenses, commits a Class C1
24 criminal offense shall, upon conviction, be punished by imprisonment

1 in the custody of the Department of Corrections for a term of not
2 less than two (2) years nor more than twelve (12) years and shall
3 serve at least twenty-five percent (25%) of the sentence imposed
4 before release from custody including release to electronic
5 monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma
6 Statutes.

7 2. Every person who, having been previously convicted of three
8 Class C or Class D criminal offenses, or one or more Class Y, Class
9 A, or Class B criminal offenses, commits a Class C1 criminal offense
10 shall, upon conviction, be punished by imprisonment in the custody
11 of the Department of Corrections for a term of not less than two (2)
12 years nor more than thirty (30) years and shall serve at least fifty
13 percent (50%) of the sentence imposed before release from custody
14 including release to electronic monitoring pursuant to Section 510.9
15 of Title 57 of the Oklahoma Statutes.

16 D. 1. Unless specifically exempted pursuant to subsection E of
17 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
18 shall not apply to Class C1 criminal offenses.

19 2. The criminal offenses listed in paragraphs 15 and 18 of
20 subsection A of this section shall be exempt from the penalty
21 provisions provided for in subsections B and C of this section.
22 Persons convicted of the criminal offenses provided for in
23 paragraphs 15 and 18 of subsection A of this section shall be
24 punished in accordance with the corresponding penalties provided for

1 in the Oklahoma Statutes including Section 51.1 of Title 21 of the
2 Oklahoma Statutes.

3 3. The criminal offense listed in paragraph 19 of subsection A
4 of this section shall be exempt from the penalty provision provided
5 for in subsection B of this section. Persons convicted of the
6 criminal offense provided for in paragraph 19 of subsection A of
7 this section shall be punished in accordance with the corresponding
8 penalties provided for in the Oklahoma Statutes including Section
9 51.1 of Title 21 of the Oklahoma Statutes. The provisions of
10 subsection C of this section still ~~applies~~ apply to the criminal
11 offense listed in paragraph 19 of subsection A of this section.

12 E. All Class C1 criminal offenses shall be punishable by the
13 corresponding fines as provided for in the Oklahoma Statutes.

14 SECTION 6. AMENDATORY Section 13, Chapter 366, O.S.L.
15 2024 (21 O.S. Supp. 2024, Section 20M), is amended to read as
16 follows:

17 Section 20M. A. Upon the effective date of this act, Class C2
18 shall include the following criminal offenses:

19 1. Theft of anhydrous equipment, as provided for in subsection
20 B of Section 11-10 of Title 2 of the Oklahoma Statutes;

21 2. Branding, misbranding, marking, or mismarking any domestic
22 animal with intent to defraud, as provided for in Section 268 of
23 Title 4 of the Oklahoma Statutes;
24

1 ~~2.~~ 3. Injuring, destroying, or attempting to injure or destroy
2 any pipeline transportation system, as provided for in subsection C
3 of Section 6.1 of Title 17 of the Oklahoma Statutes;

4 ~~3.~~ 4. Embezzlement by a county treasurer or other officer, as
5 provided for in Section 641 of Title 19 of the Oklahoma Statutes;

6 ~~4.~~ 5. Giving or offering any bribe to an executive officer, as
7 provided for in Section 265 of Title 21 of the Oklahoma Statutes;

8 ~~5.~~ 6. Receiving or agreeing to receive a bribe by an executive
9 officer or person elected or appointed to an executive office, as
10 provided for in Section 266 of Title 21 of the Oklahoma Statutes;

11 ~~6.~~ 7. Entry into a restricted area of a building or grounds
12 using or carrying a deadly or dangerous weapon or firearm or
13 engaging in acts of violence that result in great bodily injury, as
14 provided for in paragraph 1 of subsection B of Section 282 of Title
15 21 of the Oklahoma Statutes;

16 ~~7.~~ 8. Forcefully or fraudulently preventing the Legislature
17 from meeting or organizing, as provided for in Section 301 of Title
18 21 of the Oklahoma Statutes;

19 ~~8.~~ 9. Forcefully or fraudulently compelling or attempting to
20 compel the Legislature to adjourn or disperse, as provided for in
21 Section 303 of Title 21 of the Oklahoma Statutes;

22 ~~9.~~ 10. Compelling or attempting to compel either house of the
23 Legislature to pass, amend, or reject any bill or resolution, grant
24 or refuse any petition, or to perform or omit to perform any other

1 official act, as provided for in Section 305 of Title 21 of the
2 Oklahoma Statutes;

3 ~~10.~~ 11. Offering to give a bribe to any member of the
4 Legislature in order to influence the member in giving or
5 withholding a vote, as provided for in Section 308 of Title 21 of
6 the Oklahoma Statutes;

7 ~~11.~~ 12. Asking, receiving, or agreeing to receive any bribe by
8 a member of the Legislature, as provided for in Section 309 of Title
9 21 of the Oklahoma Statutes;

10 ~~12.~~ 13. Entering a fort, magazine, arsenal, armory, arsenal
11 yard, or encampment and seizing or taking away arms, ammunition,
12 military stores, or supplies belonging to the state, as provided for
13 in Section 350 of Title 21 of the Oklahoma Statutes;

14 ~~13.~~ 14. Carrying, causing to be carried, or publicly displaying
15 any red flag or other emblem or banner indicating disloyalty to the
16 Government of the United States, as provided for in Section 374 of
17 Title 21 of the Oklahoma Statutes;

18 ~~14.~~ 15. Bribery by a fiduciary, as provided for in subsection A
19 of Section 380 of Title 21 of the Oklahoma Statutes;

20 ~~15.~~ 16. Bribery of a fiduciary, as provided for in subsection B
21 of Section 380 of Title 21 of the Oklahoma Statutes;

22 ~~16.~~ 17. Commercial bribery of an insured depository institution
23 or credit union, as provided in Section 380.1 of Title 21 of the
24 Oklahoma Statutes;

1 ~~17.~~ 18. Accepting or requesting a bribe by public officers or
2 employees of this state, as provided for in Section 382 of Title 21
3 of the Oklahoma Statutes;

4 ~~18.~~ 19. Offering or giving a bribe to any judicial officer, as
5 provided for in Section 383 of Title 21 of the Oklahoma Statutes;

6 ~~19.~~ 20. Attempting to influence a juror, as provided for in
7 Section 388 of Title 21 of the Oklahoma Statutes;

8 ~~20.~~ 21. Conspiracy to commit a felony, as provided for in
9 subsection C of Section 421 of Title 21 of the Oklahoma Statutes;

10 ~~21.~~ 22. Conspiring to commit any act against the peace of the
11 state by two or more persons outside of the state, as provided for
12 in Section 422 of Title 21 of the Oklahoma Statutes;

13 ~~22.~~ 23. Conspiring to commit any act against the state by two
14 or more persons, as provided for in Section 424 of Title 21 of the
15 Oklahoma Statutes;

16 ~~23. Endangering any other person while attempting to elude a~~
17 ~~peace officer, as provided for in subsection B of Section 540A of~~
18 ~~Title 21 of the Oklahoma Statutes;~~

19 24. Attempting to avoid a roadblock by failing to stop, passing
20 by or through such roadblock without permission, as provided for in
21 Section 540B of Title 21 of the Oklahoma Statutes;

22 25. Fraudulently producing an infant in order to intercept the
23 inheritance or distribution of any personal estate or real estate,
24 as provided for in Section 578 of Title 21 of the Oklahoma Statutes;

1 26. Maiming by inflicting upon one's self any disabling injury,
2 as provided for in Section 752 of Title 21 of the Oklahoma Statutes;
3 27. Financial exploitation of an elderly or disabled adult with
4 funds, assets, or property valued at One Hundred Thousand Dollars
5 (\$100,000.00) or less, as provided for in paragraph 2 of subsection
6 B of Section 843.4 of Title 21 of the Oklahoma Statutes;
7 28. Conducting gambling games, as provided for in Section 941
8 of Title 21 of the Oklahoma Statutes;
9 29. Using a house, room, or place to conduct gambling games, as
10 provided for in Section 946 of Title 21 of the Oklahoma Statutes;
11 30. Engaging or participating in gambling games by a public
12 officer, as provided for in Section 948 of Title 21 of the Oklahoma
13 Statutes;
14 31. Commercial gambling, as provided for in Section 982 of
15 Title 21 of the Oklahoma Statutes;
16 32. Letting premises for the purpose of betting on races or
17 receiving, registering, recording, or forwarding any money or thing
18 of value to a racetrack for betting purposes, as provided for in
19 paragraphs 2 through 6 of subsection A of Section 991 of Title 21 of
20 the Oklahoma Statutes;
21 33. Using the terms "prize" or "gift" in a manner that is
22 untrue or misleading, as provided for in Section 996.3 of Title 21
23 of the Oklahoma Statutes;
24

1 34. Advocating criminal syndicalism, sabotage, or the
2 necessity, propriety, or expediency of doing any act of physical
3 violence or unlawful act as a means of accomplishing any industrial
4 or political ends, change, or revolution, as provided for in
5 subsection A of Section 1327 of Title 21 of the Oklahoma Statutes;

6 35. Arson in the fourth degree by attempting to set fire to or
7 burn any building or property, as provided for in subsection A of
8 Section 1404 of Title 21 of the Oklahoma Statutes;

9 36. Delivering to another any merchandise for which any bill of
10 lading, receipt, or voucher has been issued and the value of the
11 property is Fifteen Thousand Dollars (\$15,000.00) or more, as
12 provided for in paragraph 4 of Section 1416 of Title 21 of the
13 Oklahoma Statutes;

14 37. Burglary in the second degree by breaking and entering into
15 any commercial building or by breaking and entering into a coin-
16 operated or vending machine, as provided for in subsection A of
17 Section 1435 of Title 21 of the Oklahoma Statutes;

18 38. Embezzlement of property valued at Fifteen Thousand Dollars
19 (\$15,000.00) or more, as provided for in paragraph 4 of subsection B
20 of Section 1451 of Title 21 of the Oklahoma Statutes;

21 39. Embezzlement by a county or state officer, as provided for
22 in subsection C of Section 1451 of Title 21 of the Oklahoma
23 Statutes;

1 40. False personation of another, as provided for in Section
2 1531 of Title 21 of the Oklahoma Statutes;

3 41. Receiving money or property intended for another with a
4 value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided
5 for in paragraph 4 of Section 1532 of Title 21 of the Oklahoma
6 Statutes;

7 42. Use of a motor vehicle or motor-driven cycle for the
8 purpose of falsely impersonating a law enforcement officer which
9 causes another person to be injured, defrauded, harassed, vexed, or
10 annoyed, as provided for in paragraph 2 of subsection F of Section
11 1533 of Title 21 of the Oklahoma Statutes;

12 43. Obtaining, attempting to obtain, or presenting to a
13 financial institution personal, financial, or other information of
14 another person, as provided for in Section 1533.2 of Title 21 of the
15 Oklahoma Statutes;

16 44. Obtaining property by trick, deception, or by means of a
17 false or bogus check and the property value is Fifteen Thousand
18 Dollars (\$15,000.00) or more, as provided for in paragraph 3 of
19 subsection A of Section 1541.2 of Title 21 of the Oklahoma Statutes;

20 45. Making, drawing, uttering, or delivering two or more false
21 or bogus checks and the value is Fifteen Thousand Dollars
22 (\$15,000.00) or more, as provided for in paragraph 3 of subsection A
23 of Section 1541.3 of Title 21 of the Oklahoma Statutes;

1 46. Selling, exchanging, or delivering any forged or
2 counterfeited promissory note, check, bill, draft, or other evidence
3 of debt knowing the same is forged or counterfeited and the value of
4 the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
5 provided for in paragraph 4 of subsection A of Section 1577 of Title
6 21 of the Oklahoma Statutes;

7 47. Possession of any forged, altered, or counterfeited
8 negotiable note, bill, draft, or other evidence of debt and the
9 value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or
10 more, as provided for in paragraph 4 of subsection A of Section 1578
11 of Title 21 of the Oklahoma Statutes;

12 48. Possession of any forged or counterfeited instrument with
13 intent to injure or defraud and the value of the instrument is
14 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
15 paragraph 4 of subsection A of Section 1579 of Title 21 of the
16 Oklahoma Statutes;

17 49. Uttering or publishing as true any forged, altered, or
18 counterfeited instrument or counterfeit coins and the value of the
19 instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
20 provided for in paragraph 4 of subsection A of Section 1592 of Title
21 21 of the Oklahoma Statutes;

22 50. Exhibiting false, forged, or altered books, papers,
23 vouchers, security, or other instruments of evidence to any public
24

1 officer or board with intent to deceive, as provided for in Section
2 1632 of Title 21 of the Oklahoma Statutes;

3 51. Destroying, altering, mutilating, or falsifying any books,
4 papers, writing, or securities belonging to a corporation or
5 association with intent to defraud, as provided for in Section 1635
6 of Title 21 of the Oklahoma Statutes;

7 ~~52. Instigating or encouraging any fight between dogs, as~~
8 ~~provided for in Section 1694 of Title 21 of the Oklahoma Statutes;~~

9 ~~53. Keeping a house, pit, or other place, or providing any~~
10 ~~equipment or facilities to be used for any fight between dogs, as~~
11 ~~provided for in Section 1695 of Title 21 of the Oklahoma Statutes;~~

12 ~~54. Acting or performing any service in the furtherance of or~~
13 ~~facilitating any dogfight, as provided for in Section 1696 of Title~~
14 ~~21 of the Oklahoma Statutes;~~

15 ~~55. Owning, possessing, keeping, or training any dog with~~
16 ~~intent to have such dog fight another dog, as provided for in~~
17 ~~Section 1697 of Title 21 of the Oklahoma Statutes;~~

18 ~~56.~~ Larceny of lost property and the value of the property is
19 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
20 paragraph 4 of Section 1702 of Title 21 of the Oklahoma Statutes;

21 ~~57.~~ 53. Grand larceny and the value of the property is Fifteen
22 Thousand Dollars (\$15,000.00) or more, as provided for in paragraph
23 4 of subsection A of Section 1705 of Title 21 of the Oklahoma
24 Statutes;

1 ~~58.~~ 54. Grand larceny in any dwelling house or vessel, as
2 provided for in Section 1707 of Title 21 of the Oklahoma Statutes;

3 ~~59.~~ 55. Larceny of any evidence of debt or other written
4 instrument, as provided for in Section 1709 of Title 21 of the
5 Oklahoma Statutes;

6 ~~60.~~ 56. Buying or receiving any property that has been stolen,
7 embezzled, or obtained by false pretense or robbery and has a value
8 of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
9 paragraph 3 of subsection A of Section 1713 of Title 21 of the
10 Oklahoma Statutes;

11 ~~61.~~ 57. Buying or receiving any construction equipment or farm
12 equipment that has been stolen, embezzled, or obtained by false
13 pretense or robbery, as provided for in Section 1713.1 of Title 21
14 of the Oklahoma Statutes;

15 ~~62.~~ 58. Bringing into this state the stolen property of another
16 obtained from another state or country, as provided for in Section
17 1715 of Title 21 of the Oklahoma Statutes;

18 ~~63.~~ 59. Larceny of livestock or implement of husbandry, as
19 provided for in subsection A of Section 1716 of Title 21 of the
20 Oklahoma Statutes;

21 ~~64.~~ 60. Larceny of a dog, as provided for in Section 1718 of
22 Title 21 of the Oklahoma Statutes;

23 ~~65.~~ 61. Grand larceny of exotic livestock, as provided for in
24 Section 1719.2 of Title 21 of the Oklahoma Statutes;

1 ~~66.~~ 62. Larceny of an aircraft, automobile, construction
2 equipment, or farm equipment, valued at Fifty Thousand Dollars
3 (\$50,000.00) or more, as provided for in Section 1720 of Title 21 of
4 the Oklahoma Statutes;

5 ~~67.~~ 63. Tapping or drilling into a pipeline, as provided for in
6 Section 1721 of Title 21 of the Oklahoma Statutes;

7 ~~68.~~ 64. Taking any crude oil or gasoline from any pipe,
8 pipeline, tank, tank car, or other receptacle or container and the
9 value of such product is One Thousand Dollars (\$1,000.00) or more,
10 as provided for in paragraph 2 of Section 1722 of Title 21 of the
11 Oklahoma Statutes;

12 ~~69.~~ 65. Larceny of merchandise from a retailer or wholesaler
13 and the value of the goods is Fifteen Thousand Dollars (\$15,000.00)
14 or more, as provided for in paragraph 5 of subsection A of Section
15 1731 of Title 21 of the Oklahoma Statutes;

16 ~~70.~~ 66. Larceny of trade secrets that is valued at Fifteen
17 Thousand Dollars (\$15,000.00) or more, as provided for in Section
18 1732 of Title 21 of the Oklahoma Statutes;

19 ~~71.~~ 67. Procuring, soliciting, selling, or receiving by
20 fraudulent, deceptive, or false means two to ten telephone records
21 without authorization, as provided for in paragraph 2 of subsection
22 B of Section 1742.2 of Title 21 of the Oklahoma Statutes;

1 ~~72.~~ 68. Masking, altering, or removing any locomotive or
2 railway car lights or signals, as provided for in Section 1778 of
3 Title 21 of the Oklahoma Statutes;

4 ~~73.~~ 69. Mutilating, tearing, defacing, obliterating, or
5 destroying any written instrument, value of Fifteen Thousand Dollars
6 (\$15,000.00) or more, as provided for in Section 1779 of Title 21 of
7 the Oklahoma Statutes;

8 ~~74.~~ 70. Violations of the Oklahoma Computer Crimes Act, as
9 provided for in paragraphs 1, 2, 3, 6, 7, 9, or 10 of subsection A
10 of Section 1953 of Title 21 of the Oklahoma Statutes;

11 ~~75.~~ 71. Contracting the sale of rights arising from a criminal
12 act without providing for the forfeiture of the proceeds, as
13 provided for in subsection A of Section 17 of Title 22 of the
14 Oklahoma Statutes;

15 ~~76.~~ 72. Violating any of the provisions of the Oklahoma Clean
16 Air Act knowing that the violation places others in danger of death
17 or serious bodily injury, as provided for in subsection B of Section
18 2-5-116 of Title 27A of the Oklahoma Statutes;

19 ~~77.~~ 73. Violating any of the provisions of the Oklahoma
20 Pollutant Discharge Elimination System Act knowing that the
21 violation places others in imminent danger of death or serious
22 bodily injury, as provided for in subparagraph a of paragraph 3 of
23 subsection G of Section 2-6-206 of Title 27A of the Oklahoma
24 Statutes;

1 ~~78.~~ 74. Soliciting or accepting any bribe or money by a game
2 warden in connection with the performance of his or her duties as a
3 game warden, as provided for in subsection E of Section 3-201 of
4 Title 29 of the Oklahoma Statutes;

5 ~~79.~~ 75. Taking or enticing away an incapacitated or partially
6 incapacitated person or person for whom a guardian has been
7 appointed without consent of the guardian, as provided for in
8 Section 4-904 of Title 30 of the Oklahoma Statutes;

9 ~~80.~~ 76. Violating any of the provisions of the Viatical
10 Settlements Act of 2008 if the value of the viatical settlement
11 contract is more than Two Thousand Five Hundred Dollars (\$2,500.00)
12 but not more than Thirty-five Thousand Dollars (\$35,000.00), as
13 provided for in paragraph 2 of subsection F of Section 4055.14 of
14 Title 36 of the Oklahoma Statutes;

15 ~~81.~~ 77. Embezzlement of certain funds held in trust, value of
16 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
17 paragraph (2) of Section 153 of Title 42 of the Oklahoma Statutes;

18 ~~82.~~ 78. Providing any false statement of a material fact in an
19 application for a certificate of title, as provided for in Section
20 4-108 of Title 47 of the Oklahoma Statutes;

21 ~~83.~~ 79. Altering or forging any certificate of title issued by
22 the Oklahoma Tax Commission, as provided for in Section 4-109 of
23 Title 47 of the Oklahoma Statutes;

1 ~~84.~~ 80. Perjury by making any false affidavit, as provided for
2 in Section 6-302 of Title 47 of the Oklahoma Statutes;

3 ~~85.~~ 81. Creating, manufacturing, issuing, or selling security
4 verification forms, as provided for in subsection B of Section 7-612
5 of Title 47 of the Oklahoma Statutes;

6 ~~86.~~ 82. Committing a subsequent violation of driving under the
7 influence of alcohol or other intoxicating substance within ten (10)
8 years of being convicted of driving under the influence of alcohol
9 or other intoxicating substance, causing a personal injury accident
10 while driving under the influence of alcohol or other intoxicating
11 substance, or driving under the influence of alcohol or other
12 intoxicating substance while transporting a child, as provided for
13 in paragraph 2 of subsection C of Section 11-902 of Title 47 of the
14 Oklahoma Statutes;

15 ~~87.~~ 83. Operating a vehicle without a valid driver license for
16 the class of vehicle being operated and causing an accident
17 resulting in great bodily injury to another person, as provided for
18 in subsection B of Section 11-905 of Title 47 of the Oklahoma
19 Statutes;

20 ~~88.~~ 84. Operating a crusher without a proper license and
21 receiving, obtaining, or possessing any vehicle or property known to
22 be stolen, as provided for in paragraph 2 of subsection B of Section
23 592.9 of Title 47 of the Oklahoma Statutes;

1 ~~89.~~ 85. Selling a vehicle or other property to a crusher using
2 false or altered identification or making a false declaration of
3 ownership or lien status, as provided for in paragraph 3 of
4 subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

5 ~~90.~~ 86. Owning, operating, or conducting a chop shop,
6 transporting any motor vehicle or parts to or from a chop shop, or
7 selling, transferring, purchasing, or receiving any motor vehicle or
8 parts to or from a chop shop, as provided for in subsection A of
9 Section 1503 of Title 47 of the Oklahoma Statutes;

10 ~~91.~~ 87. Altering, counterfeiting, defacing, destroying,
11 disguising, falsifying, forging, obliterating, or knowingly removing
12 a vehicle identification number, as provided for in subsection B of
13 Section 1503 of Title 47 of the Oklahoma Statutes;

14 ~~92.~~ 88. Perjury by a public officer or employee who states as
15 true any material matter knowing it to be false, as provided for in
16 Section 36.5 of Title 51 of the Oklahoma Statutes;

17 ~~93.~~ 89. Advocating by teaching, justifying, or becoming a
18 member of or affiliated with the Communist Party or with any other
19 party or organization that advocates for the revolution, sedition,
20 treason, or overthrow of the government of the United States or the
21 State of Oklahoma by a public officer or employee, as provided for
22 in Section 36.6 of Title 51 of the Oklahoma Statutes;

23 ~~94.~~ 90. Perjury by verifying under oath any report, map, or
24 drawing required to be filed with the Corporation Commission knowing

1 that such material is false, as provided for in Section 109 of Title
2 52 of the Oklahoma Statutes;

3 ~~95.~~ 91. Asking, receiving, or agreeing to receive any gift or
4 gratuity by any member of the Corporation Commission, as provided
5 for in Section 118 of Title 52 of the Oklahoma Statutes;

6 ~~96.~~ 92. Burglary in the first degree by a bail enforcer by
7 breaking into and entering the dwelling house of any defendant or
8 third party for purposes of recovery or attempted recovery of a
9 defendant, as provided for in subsection A of Section 1350.6 of
10 Title 59 of the Oklahoma Statutes;

11 ~~97.~~ 93. Distributing, dispensing, transporting, or possessing a
12 controlled dangerous substance or soliciting a person less than
13 eighteen (18) years of age to cultivate, distribute, or dispense a
14 controlled dangerous substance, as provided for in paragraph 1 of
15 subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

16 ~~98.~~ 94. Creating, distributing, transporting, or possessing a
17 counterfeit controlled dangerous substance, as provided for in
18 paragraph 2 of subsection A of Section 2-401 of Title 63 of the
19 Oklahoma Statutes;

20 ~~99.~~ 95. Manufacturing or distributing a controlled substance or
21 synthetic controlled substance, as provided for in paragraph 1 of
22 subsection C of Section 2-401 of Title 63 of the Oklahoma Statutes;

1 ~~100.~~ 96. Larceny, burglary, or theft of a controlled dangerous
2 substance, as provided for in subsection A of Section 2-403 of Title
3 63 of the Oklahoma Statutes;

4 ~~101.~~ 97. Obtaining or attempting to obtain any controlled
5 dangerous substance by fraud, deceit, misrepresentation, or
6 subterfuge, as provided for in paragraph 1 of subsection A of
7 Section 2-407 of Title 63 of the Oklahoma Statutes;

8 ~~102.~~ 98. Obtaining or attempting to obtain any controlled
9 dangerous substance by forgery of, alteration of, or changing any
10 information on a prescription or any written order, as provided for
11 in paragraph 2 of subsection A of Section 2-407 of Title 63 of the
12 Oklahoma Statutes;

13 ~~103.~~ 99. Obtaining or attempting to obtain any controlled
14 dangerous substance by the concealment of a material fact, as
15 provided for in paragraph 3 of subsection A of Section 2-407 of
16 Title 63 of the Oklahoma Statutes;

17 ~~104.~~ 100. Obtaining or attempting to obtain any controlled
18 dangerous substance by the use of a false name or false address, as
19 provided for in paragraph 4 of subsection A of Section 2-407 of
20 Title 63 of the Oklahoma Statutes;

21 ~~105.~~ 101. Obtaining or attempting to obtain any controlled
22 dangerous substance by failing to disclose the receipt or
23 prescription of a controlled dangerous substance of the same or
24 similar therapeutic use from another practitioner, as provided for

1 in paragraph 5 of subsection A of Section 2-407 of Title 63 of the
2 Oklahoma Statutes;

3 ~~106.~~ 102. Manufacturing, creating, delivering, or possessing an
4 original prescription form or counterfeit prescription form, as
5 provided for in subsection B of Section 2-407 of Title 63 of the
6 Oklahoma Statutes;

7 ~~107.~~ 103. Receiving or acquiring proceeds known to be derived
8 from any violation of the Uniform Controlled Dangerous Substances
9 Act, as provided for in subsection A of Section 2-503.1 of Title 63
10 of the Oklahoma Statutes;

11 ~~108.~~ 104. Knowingly or intentionally giving, selling,
12 transferring, trading, investing, concealing, transporting, or
13 maintaining an interest in anything of value which is intended to be
14 used for committing a violation of the Uniform Controlled Dangerous
15 Substances Act, as provided for in subsection B of Section 2-503.1
16 of Title 63 of the Oklahoma Statutes;

17 ~~109.~~ 105. Directing, planning, organizing, initiating,
18 financing, managing, supervising, or facilitating the transportation
19 or transfer of proceeds known to be derived from a violation of the
20 Uniform Controlled Dangerous Substances Act, as provided for in
21 subsection C of Section 2-503.1 of Title 63 of the Oklahoma
22 Statutes;

23 ~~110.~~ 106. Conducting a financial transaction involving proceeds
24 derived from a violation of the Uniform Controlled Dangerous

1 Substances Act for the purpose of concealing or disguising the
2 nature, location, source, ownership, or control of the proceeds
3 known to be derived from a violation of the Uniform Controlled
4 Dangerous Substances Act, as provided for in subsection D of Section
5 2-503.1 of Title 63 of the Oklahoma Statutes;

6 ~~111.~~ 107. Encouraging, facilitating, or allowing access to any
7 money transmitter equipment for unlawful purposes, as provided for
8 in subsection B of Section 2-503.1d of Title 63 of the Oklahoma
9 Statutes;

10 ~~112.~~ 108. Using a money services business or electronic funds
11 transfer network to facilitate any violation of the Uniform
12 Controlled Dangerous Substances Act, as provided for in Section 2-
13 503.1e of Title 63 of the Oklahoma Statutes;

14 ~~113.~~ 109. Structuring, assisting, or attempting to structure
15 any unlawful transaction with one or more financial or nonfinancial
16 trades or businesses, as provided for in Section 2-503.1g of Title
17 63 of the Oklahoma Statutes;

18 ~~114.~~ 110. Altering, counterfeiting, defacing, destroying,
19 disguising, falsifying, forging, obliterating, or removing a hull
20 identification number of a vessel or motor, as provided for in
21 subsection B of Section 4253 of Title 63 of the Oklahoma Statutes;

22 ~~115.~~ 111. Commit or attempt to commit certain violations of the
23 Vessel and Motor Chop Shop, Stolen and Altered Property Act, as
24

1 provided for in subsection D of Section 4253 of Title 63 of the
2 Oklahoma Statutes;

3 ~~116.~~ 112. Giving a false or bogus check in payment or
4 remittance of taxes, fees, penalties, or interest levied pursuant to
5 any state tax laws and the value of the false or bogus check is Five
6 Hundred Dollars (\$500.00) or more, as provided for in Section 218.1
7 of Title 68 of the Oklahoma Statutes;

8 ~~117.~~ 113. Perjury by providing false answers to any questions
9 from the Oklahoma Tax Commission or making or presenting any false
10 affidavit to be filed with the Oklahoma Tax Commission, as provided
11 for in Section 244 of Title 68 of the Oklahoma Statutes;

12 ~~118.~~ 114. Perjury by verifying by oath, affirmation, or
13 declaration, any false report or false return that is to be filed
14 with the Oklahoma Tax Commission, as provided for in Section 246 of
15 Title 68 of the Oklahoma Statutes;

16 ~~119.~~ 115. Making or manufacturing any tax stamp or falsely or
17 fraudulently forging, counterfeiting, reproducing, or possessing any
18 tax stamp, as provided for in subsection (a) of Section 317 of Title
19 68 of the Oklahoma Statutes;

20 ~~120.~~ 116. Offering or selling unregistered securities, as
21 provided for in Section 1-301 of Title 71 of the Oklahoma Statutes;

22 ~~121.~~ 117. Issuing investment certificates when insolvent by an
23 investment certificate issuer, as provided for in paragraph 1 of
24 subsection K of Section 1-308 of Title 71 of the Oklahoma Statutes;

1 ~~122.~~ 118. Transacting business as a broker-dealer without being
2 registered as a broker-dealer, as provided for in subsection A of
3 Section 1-401 of Title 71 of the Oklahoma Statutes;

4 ~~123.~~ 119. Employing or associating with an individual for
5 security transaction purposes when the registration of the
6 individual is suspended or revoked or the individual is barred from
7 employment or association with a broker-dealer, as provided for in
8 subsection C of Section 1-401 of Title 71 of the Oklahoma Statutes;

9 ~~124.~~ 120. Transacting business as an agent without being
10 registered as an agent, as provided for in subsection A of Section
11 1-402 of Title 71 of the Oklahoma Statutes;

12 ~~125.~~ 121. Employing or associating with an agent who transacts
13 business on behalf of broker-dealers when the agent is not
14 registered, as provided for in subsection D of Section 1-402 of
15 Title 71 of the Oklahoma Statutes;

16 ~~126.~~ 122. Conducting business on behalf of a broker-dealer when
17 the registration of the agent is suspended or revoked or the
18 individual is barred from employment or association with a broker-
19 dealer, as provided for in subsection F of Section 1-402 of Title 71
20 of the Oklahoma Statutes;

21 ~~127.~~ 123. Transacting business as an investment adviser without
22 being registered as an investment adviser, as provided for in
23 subsection A of Section 1-403 of Title 71 of the Oklahoma Statutes;

1 ~~128.~~ 124. Employing or associating with an individual to engage
2 in providing investment advice when the registration of the
3 individual is suspended or revoked or the individual is barred from
4 employment or association with an investment adviser, as provided
5 for in subsection C of Section 1-403 of Title 71 of the Oklahoma
6 Statutes;

7 ~~129.~~ 125. Employing or associating with an individual required
8 to be registered as an investment adviser representative who is not
9 registered as an investment adviser representative, as provided for
10 in subsection D of Section 1-403 of Title 71 of the Oklahoma
11 Statutes;

12 ~~130.~~ 126. Transacting business as an investment adviser
13 representative without being registered as an investment adviser
14 representative, as provided for in subsection A of Section 1-404 of
15 Title 71 of the Oklahoma Statutes;

16 ~~131.~~ 127. Conducting business on behalf of an investment
17 adviser or federal_covered investment adviser when the registration
18 of the investment adviser representative is suspended or revoked or
19 the individual is barred from employment or association with an
20 investment adviser or federal_covered investment adviser, as
21 provided for in subsection E of Section 1-404 of Title 71 of the
22 Oklahoma Statutes;

23 ~~132.~~ 128. Employing a device, scheme, or artifice to defraud
24 another when offering, selling, or purchasing a security, as

1 provided for in paragraph 1 of Section 1-501 of Title 71 of the
2 Oklahoma Statutes;

3 ~~133.~~ 129. Making an untrue statement of a material fact or
4 omitting a material fact when offering, selling, or purchasing a
5 security, as provided for in paragraph 2 of Section 1-501 of Title
6 71 of the Oklahoma Statutes;

7 ~~134.~~ 130. Engaging in an act, practice, or course of business
8 that operates as a fraud or deceit upon another person when
9 offering, selling, or purchasing a security, as provided for in
10 paragraph 3 of Section 1-501 of Title 71 of the Oklahoma Statutes;

11 ~~135.~~ 131. Employing a device, scheme, or artifice to defraud
12 another when advising others for compensation as to the value of
13 securities, as provided for in paragraph 1 of subsection A of
14 Section 1-502 of Title 71 of the Oklahoma Statutes;

15 ~~136.~~ 132. Making an untrue statement of a material fact or
16 omitting a material fact when advising others for compensation as to
17 the value of securities, as provided for in paragraph 2 of
18 subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

19 ~~137.~~ 133. Engaging in an act, practice, or course of business
20 that operates as a fraud or deceit upon another person when advising
21 others for compensation as to the value of securities, as provided
22 for in paragraph 3 of subsection A of Section 1-502 of Title 71 of
23 the Oklahoma Statutes;

1 ~~138.~~ 134. Making false or misleading statements in a record, as
2 provided for in Section 1-505 of Title 71 of the Oklahoma Statutes;

3 ~~139.~~ 135. Making or causing to be made to a purchaser,
4 customer, client, or prospective customer or client, an inconsistent
5 representation, as provided for in Section 1-506 of Title 71 of the
6 Oklahoma Statutes;

7 ~~140.~~ 136. Willfully violating certain provisions of the
8 Oklahoma Uniform Securities Act of 2004, as provided for in
9 subsection A of Section 1-508 of Title 71 of the Oklahoma Statutes;

10 ~~141.~~ 137. Offering or selling any business opportunity without
11 being registered under the Oklahoma Business Opportunity Sales Act,
12 as provided for in Section 806 of Title 71 of the Oklahoma Statutes;

13 ~~142.~~ 138. Offering or selling any business opportunity without
14 a written disclosure being filed, as provided for in subsection A of
15 Section 808 of Title 71 of the Oklahoma Statutes;

16 ~~143.~~ 139. Offering or selling any business opportunity without
17 a business opportunity contract or agreement, as provided for in
18 subsection A of Section 809 of Title 71 of the Oklahoma Statutes;

19 ~~144.~~ 140. Making or using any specific representations from the
20 Oklahoma Business Opportunity Sales Act without having a minimum net
21 worth of Fifty Thousand Dollars (\$50,000.00), as provided for in
22 Section 811 of Title 71 of the Oklahoma Statutes;

23 ~~145.~~ 141. Using information filed with or obtained by the
24 Administrator that is not public for the personal benefit of the

1 Administrator or any officers or employees of the Administrator, as
2 provided for in subsection B of Section 812 of Title 71 of the
3 Oklahoma Statutes;

4 ~~146.~~ 142. Employing any device, scheme, or artifice to defraud
5 in connection with offering or selling any business opportunity, as
6 provided for in paragraph 1 of Section 819 of Title 71 of the
7 Oklahoma Statutes;

8 ~~147.~~ 143. Making any untrue statement of a material fact or
9 omitting a material fact in connection with offering or selling any
10 business opportunity, as provided for in paragraph 2 of Section 819
11 of Title 71 of the Oklahoma Statutes;

12 ~~148.~~ 144. Engaging in any act, practice, or course of business
13 which operates as a fraud or deceit in connection with offering or
14 selling any business opportunity, as provided for in paragraph 3 of
15 Section 819 of Title 71 of the Oklahoma Statutes;

16 ~~149.~~ 145. Making or causing to be made any false or misleading
17 statements or omitting to state a material fact necessary in any
18 document filed with the Administrator or in any proceeding pursuant
19 to the Oklahoma Business Opportunity Sales Act, as provided for in
20 Section 820 of Title 71 of the Oklahoma Statutes;

21 ~~150.~~ 146. Filing any application for registration that is
22 false, incomplete, or misleading, as provided for in Section 821 of
23 Title 71 of the Oklahoma Statutes;

1 ~~151.~~ 147. Publishing, circulating, or using any advertising
2 that contains untrue statements of material facts or omits to state
3 material facts necessary, as provided for in Section 822 of Title 71
4 of the Oklahoma Statutes;

5 ~~152.~~ 148. Taking or receiving any rebate, percentage of
6 contract, money, or any other thing of value by an officer of the
7 Office of Management and Enterprise Services from any person, firm,
8 or corporation, as provided for in Section 71 of Title 74 of the
9 Oklahoma Statutes;

10 ~~153.~~ 149. Monopolizing, attempting to monopolize, or conspiring
11 to monopolize any part of trade or commerce, as provided for in
12 subsection B of Section 203 of Title 79 of the Oklahoma Statutes;

13 ~~154.~~ 150. Discrimination in price between different purchasers
14 of commodities by any person engaged in commerce, as provided for in
15 Section 204 of Title 79 of the Oklahoma Statutes;

16 ~~155.~~ 151. Violation of the Oklahoma Antitrust Reform Act, as
17 provided for in Section 206 of Title 79 of the Oklahoma Statutes;

18 ~~156.~~ 152. Having any interest, directly or indirectly, in any
19 contract for the purchase of property or construction of work by or
20 for the Grand River Dam Authority by a director, officer, agent, or
21 employee, as provided for in Section 867 of Title 82 of the Oklahoma
22 Statutes; and

1 ~~157.~~ 153. Using explosive agent to kill, injure, or intimidate
2 or to damage property, as provided for in subsection B of Section
3 124.8 of Title 63 of the Oklahoma Statutes; ~~and~~

4 ~~158. Theft of anhydrous equipment, as provided for in~~
5 ~~subsection B of Section 11-10 of Title 2 of the Oklahoma Statutes.~~

6 B. Any person convicted of a Class C2 criminal offense set
7 forth in this section shall be punished by imprisonment in the
8 custody of the Department of Corrections for a term of not more than
9 seven (7) years and shall serve at least twenty percent (20%) of the
10 sentence imposed before release from custody including release to
11 electronic monitoring pursuant to Section 510.9 of Title 57 of the
12 Oklahoma Statutes.

13 C. 1. Every person who, having been previously convicted of
14 one or two Class C or Class D criminal offenses, commits a Class C2
15 criminal offense shall, upon conviction, be punished by imprisonment
16 in the custody of the Department of Corrections for a term of not
17 less than two (2) years nor more than ten (10) years and shall serve
18 at least twenty percent (20%) of the sentence imposed before release
19 from custody including release to electronic monitoring pursuant to
20 Section 510.9 of Title 57 of the Oklahoma Statutes.

21 2. Every person who, having been previously convicted of three
22 Class C or Class D criminal offenses, or one or more Class Y, Class
23 A, or Class B criminal offenses, commits a Class C2 criminal offense
24 shall, upon conviction, be punished by imprisonment in the custody

1 of the Department of Corrections for a term of not less than two (2)
2 years nor more than twelve (12) years and shall serve at least forty
3 percent (40%) of the sentence imposed before release from custody
4 including release to electronic monitoring pursuant to Section 510.9
5 of Title 57 of the Oklahoma Statutes.

6 D. Unless specifically exempted pursuant to subsection E of
7 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
8 shall not apply to Class C2 criminal offenses.

9 E. 1. The criminal offenses listed in paragraphs 1, 2, 52, 53,
10 54, 55, 63, 65, 67, 68, 76, and 77 of subsection A of this section
11 shall be exempt from the penalty provisions provided for in
12 subsections B and C of this section. Persons convicted of the
13 criminal offenses provided for in paragraphs 1, 2, 52, 53, 54, 55,
14 63, 65, 67, 68, 76, and 77 of subsection A of this section shall be
15 punished in accordance with the corresponding penalties provided for
16 in the Oklahoma Statutes including Section 51.1 of Title 21 of the
17 Oklahoma Statutes.

18 2. The criminal offense listed in paragraph 64 of subsection A
19 of this section shall be exempt from the penalty provision provided
20 for in subsection B of this section. Persons convicted of the
21 criminal offense provided for in paragraph 64 of subsection A of
22 this section shall be punished in accordance with the corresponding
23 penalties as provided for in the Oklahoma Statutes including Section
24 51.1 of Title 21 of the Oklahoma Statutes. The provisions of

1 subsection C of this section still applies to the criminal offense
2 listed in paragraph 64 of subsection A of this section.

3 F. All Class C2 criminal offenses shall be punishable by the
4 corresponding fines as provided for in the Oklahoma Statutes.

5 SECTION 7. This act shall become effective January 1, 2026.

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